

<i>Parliamentary Borough.</i>					<i>Division (if any).</i>
Carlisle	...	...	...	...	—
Edinburgh	...	...	...	...	Central. East. North. South. West.
Greenock	...	...	...	...	—
Leith	...	...	...	...	—
Morpeth	...	...	...	...	—
Stirling and Falkirk district of Burghs	...	...	...	...	—
Warrington	...	...	...	...	—
<i>Parliamentary County.</i>					<i>Division (if any).</i>
Berwick and Haddington	...	...	...	...	—
Chester	...	...	...	...	Crewe. Darwen. Farnworth. Lonsdale. Northern. Peebles and Southern. Western.
Lancaster	...	...	...	...	Clackmannan and Eastern.
Midlothian and Peebles	...	...	...	...	
Renfrew	...	...	...	...	
Stirling and Clackmannan	...	...	...	...	

PART II.

CONSTITUENCY IN WHICH POLLING DAY IS TO BE
19TH JULY, 1945.

Parliamentary Borough.
Nelson and Colne.

CHAPTER 41.

Family Allowances Act, 1945.

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Grant of family allowances.

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An Act to provide for the payment of family allowances.
[15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Grant of family allowances.

Direction for
payment, and
amount, of
allowances.

1. Subject to the provisions of this Act, there shall be paid by the Minister, out of moneys provided by Parliament, for every family which includes two or more children and for the benefit of the family as a whole, an allowance in respect of each child in the family other than the elder or eldest at the rate of five shillings a week.

Meaning of
"child."

2.—(1) A person shall be treated for the purposes of this Act as a child—

(a) during any period whilst he or she is under the upper limit of the compulsory school age; and

(b) during any period before the first day of August next following the day on which he or she attains the age of sixteen years whilst he or she is undergoing full-time instruction in a school, or is an apprentice.

(2) For the purposes of this section—

- (a) the upper limit of the compulsory school age means the age that is for the time being that limit by virtue of section thirty-five of the Education Act, 1944, together with any Order in Council made under that section or c. 31. any order made under subsection (3) of section one hundred and eight of that Act ;
- (b) a person who at any time attains the upper limit of the compulsory school age shall not be treated as being under that limit at any time thereafter, notwithstanding any subsequent change in that limit ;
- (c) a person who becomes an apprentice after an interval of not more than one month from attaining the upper limit of the compulsory school age, or from ceasing to undergo full-time instruction in a school, shall be treated as having been an apprentice throughout the interval.

3.—(1) Subject to the provisions of this Act, each of the following shall be treated for the purposes of this Act as constituting a family, that is to say—

Meaning of
"family"

- (a) a man and his wife living together, any child or children being issue of theirs, his or hers, and any child or children being maintained by them ;
- (b) a man not having a wife or not living together with his wife, any child or children being issue of his, and any child or children being maintained by him ; and
- (c) a woman not having a husband or not living together with her husband, any child or children being issue of hers, and any child or children being maintained by her.

In this Act the expression " issue " means issue of the first generation.

(2) It shall be a condition of a child's being treated as included in a family as being issue of the man and his wife or one of them, of the man, or of the woman (according as the family falls within paragraph (a), (b) or (c) of subsection (1) of this section) that the child is living with them, with him or with her, as the case may be, or, if not, that the cost of providing for the child is contributed to by them taken together, by him, or by her, as the case may be, at the rate of five shillings a week or more.

(3) The provisions of the Schedule to this Act shall have effect as to the circumstances in which a man and his wife living together, or such a man or woman as is mentioned in paragraph

(b) or (c) of subsection (1) of this section, is to be treated as maintaining a child; and for determining as between parents and persons maintaining children, or as between one parent of a child and the other, in what family a child is to be treated as included.

Persons to
whom
allowances
are to be paid.

4.—(1) Allowances for any family shall belong—

- (a) in the case of the family of a man and his wife living together, to the wife, subject however to the provisions of subsections (2) and (3) of this section;
- (b) in the case of the family of such a man as is mentioned in paragraph (b) of subsection (1) of the last preceding section, to him;
- (c) in the case of the family of such a woman as is mentioned in paragraph (c) of subsection (1) of the last preceding section, to her.

(2) Sums to be paid on account of an allowance for the family of a man and his wife living together shall be receivable either by the man or by the wife.

(3) If in the case of a man and his wife living together a court of summary jurisdiction is satisfied on a representation made to the court by way of complaint by either of them, or by the Minister or the local authority, that one of them is not, as against the other, a proper recipient of allowances for their family, the court may order that sums on account of allowances for their family becoming receivable after the expiration of fourteen days from the date of the order shall, notwithstanding anything in the last preceding subsection, be receivable, as between them, by the other only, and any order made under this subsection may be revoked or varied by a subsequent order of a court of summary jurisdiction on a representation made as aforesaid.

1 Edw. 8. &

1 Geo. 6. c. 58.

(4) The Summary Procedure (Domestic Proceedings) Act, 1937, shall apply to proceedings under the last preceding subsection as if such proceedings were included in the proceedings specified in the Schedule to that Act.

(5) It shall be the duty of a court of summary jurisdiction to send notification to the Minister of any order made by them under subsection (3) of this section as soon as may be after the order is made.

(6) The local authority for the purposes of subsection (3) of this section shall be, in the case of a county borough, the borough council, and elsewhere the county council.

Claims, duration of allowances, and payment.

Determination
of questions as
to right to
allowances.

5.—(1) Subject to the provisions of this Act and in accordance with regulations made thereunder, all claims for or in respect of allowances shall be made to the Minister, and any question as to

the right to an allowance in respect of any person for any family shall be decided by him.

(2) If any person is dissatisfied by the award or decision of the Minister in respect of an allowance (whether as made or given or as revised under the next succeeding subsection), the question shall, on application being made in such manner and within such time as may be prescribed, be referred to one or more referees selected from a panel, and the decision of the referee or referees shall be final :

Provided that—

- (a) this subsection shall not apply to a decision given by the Minister as respects any matter which by this Act is to be within his discretion, or to be certified by him, or for deciding an issue which by this Act depends on any facts being shown to his satisfaction ;
- (b) the provisions of section nine of the Arbitration Act, ^{24 & 25 Geo. 5.} 1934 (which relates to the statement of cases for the decision of the court), shall apply in relation to a reference under this section, with the substitution for references in that section to an arbitrator and to his award of references to a referee or referees and to his or their decision. ^{c. 14.}

(3) The Minister may at any time and from time to time revise any award made or decision given by him under this Act, if it appears to him that the award or decision was erroneous either in view of further information which has been brought to his notice since the date on which it was made or given as to the circumstances existing at the time by reference to which it was made or given, or by reason of some mistake having been made with respect to those circumstances or to the law :

Provided that this subsection shall not apply to an award or decision relating to a matter which has been referred under this section, or until the time has expired for making an application to have the matter to which the award or decision relates so referred, unless the person on whose application the reference was made, or who is entitled to apply to have the matter referred, as the case may be, consents, and this subsection shall not apply to an award made by the Minister for the purpose of giving effect to a decision given by a referee or referees, unless the person to whom the allowance in question belongs consents.

(4) If in any case in which a decision has been given by a referee or referees with respect to a matter referred under this section it appears to the Minister that the decision might properly be reconsidered in view either of further information which has been brought to his notice since the date on which it was given as to the circumstances existing at the time by reference to which it was given, or of any apparent inconsistency between the decision and

any other decision subsequently given either by the court or by a referee or referees, he may cause the decision to be referred to one or more referees selected from the panel aforesaid, and he or they may revise the decision.

(5) The mode and terms of appointment of persons to be members of the said panel, the mode of selecting a referee or referees therefrom for the purpose of any particular reference, and the procedure to be followed on a reference, shall be such as may be prescribed, and the regulations prescribing the procedure may apply for the purposes of any reference any of the provisions of the Arbitration Acts, 1889 to 1934, and may exclude the application of any other provisions of those Acts (except the provisions of section nine of the Arbitration Act, 1934, applied by subsection (2) of this section).

(6) The Minister may pay to the members of the said panel such remuneration (whether by way of salaries or by way of fees) and such travelling and other allowances, including compensation for loss of remunerative time, and may pay such other expenses in connection with references under this section and of the attendance of persons at proceedings thereon, as the Minister with the approval of the Treasury may determine.

Period for
which allow-
ances are to
accrue.

6.—(1) An allowance shall be for a continuous period ascertained under the subsequent provisions of this section, and any award of an allowance shall be made accordingly.

(2) Subject to the provisions of the next succeeding section, an allowance awarded shall begin to accrue—

- (a) if the claim was made within six months from the date of entitlement, on the date of entitlement ; or
- (b) if the claim was not made within six months from the date of entitlement, then at the beginning of the period of six months immediately preceding the date on which the claim was made :

Provided that, if the award is a revised award made by the Minister in view of further information brought to his notice or an award made for giving effect to a revised decision given by a referee or referees in view of such information, this subsection shall have effect as if the claim had been made on the date on which that information was brought to his notice, and the Minister may for the purposes of this proviso certify the date on which information was brought to his notice.

In this subsection the expression “ date of entitlement ” means, in relation to an allowance awarded in respect of any person as being a child included in any family, the date on which all the requirements of this Act and of any relevant regulations for the existence of a right to an allowance in respect of that person for that family became satisfied, or if when the award was made

those requirements had become satisfied more than once, the date on which they last became satisfied.

(3) An allowance awarded in respect of any person as being a child included in the family of a man and his wife shall be awarded not only for their family but also, with effect after the death of either of them whilst they are living together, for any family for the time being of the survivor, or of the survivor and a spouse of his or hers.

(4) Subject to the provisions of the next succeeding section, an allowance awarded in respect of any person shall terminate when any of the requirements of this Act or of any relevant regulations for the existence of a right to an allowance in respect of that person ceases to be satisfied, or that person is no longer included in a family for which the allowance was awarded, or any of the requirements of this Act or of any relevant regulations for the existence of a right to an allowance for such a family in which that person is included ceases to be satisfied, whichever first occurs.

(5) When it appears to the Minister that an allowance awarded is about to terminate, or has terminated, under this section, he shall take all necessary steps for stopping payments on account thereof on its termination or so soon as may be practicable thereafter, and the stopping of payments on account of an allowance under this subsection shall be treated for the purposes of the last preceding section as a decision of the Minister that the allowance has terminated.

7.—(1) Allowances shall be payable by sums on account thereof receivable at such times, in such manner, whether through the Post Office or otherwise, and subject to such conditions, as may be prescribed.

Method of
payment, and
time for
obtaining
payment.

(2) The right to so much of an allowance as is payable by a sum on account thereof made receivable (whether unconditionally or subject to satisfaction of any prescribed conditions) on any day shall be extinguished at the expiration of six months from that day if payment thereof has not been obtained during that period.

(3) The regulations to be made for the purposes of this section may make provision for securing that the beginning of accruer of allowances shall coincide with a day in the week on which sums on account of allowances made receivable weekly are to become receivable, and that the termination of allowances shall coincide with a day next before such a day.

8.—(1) If it is found at any time that a sum has been paid as on account of an allowance being a sum which was not properly payable, the Minister may require it to be repaid,—

Adjustment
of over-
payments.

(a) if it was paid to a person as in his or her own right, by that person, or

- (b) if it was paid to a person as on behalf of another, either by that person or by that other person :

Provided that the Minister shall not require repayment by a person who is shown to his satisfaction to have acted in good faith in all respects as to the obtaining and receipt of the sum in question.

(2) In the case of a sum paid as on account of an allowance for the family of a man and his wife living together which the wife could under the preceding subsection be required to repay, the husband may be required to repay it.

(3) If it is found at any time that a sum properly payable on account of an allowance has been paid to a person not being a person by whom it was properly receivable, the Minister may require it to be repaid by the person to whom it was paid :

Provided that the Minister shall not require repayment by a person who is shown to his satisfaction to have acted in good faith in all respects as to the obtaining and receipt of the sum in question.

(4) In case of the death of a person who could be required to repay a sum under this section, the Minister may require it to be repaid by his or her personal representative.

(5) Any sum which a person is required under this section to repay to the Minister may, without prejudice to the recovery thereof as a debt due to the Crown, be recovered by the Minister summarily as a civil debt, and proceedings for the summary recovery as a civil debt of any such sum may, notwithstanding anything in any Act to the contrary, be brought at any time within twelve months from the time when that sum was paid, or, where the proceedings are for the recovery of a consecutive series of sums, within twelve months from the date on which the last sum of the series was paid.

(6) Any sum which a person is required under this section to repay to the Minister may, without prejudice to any other remedy, be recovered by means of deductions from any other sum receivable on account of any allowance by the person to whom the sum was paid, unless it was paid to that person as on behalf of another, and in that case it may, without prejudice to any other remedy, be recovered by means of deductions from any other sum receivable on account of any allowance by that other person.

(7) If, after an allowance in respect of a child has been awarded for one family, facts are brought to the Minister's notice from which it appears that the child was in fact not included in that family, but was included in another family, during a period for which sums have been paid as on account of the allowance awarded, and a subsequent award is made of an allowance in respect of the child for that other family so as to accrue during

that period or any part thereof, sums on account of the allowance awarded for that other family shall be payable only—

- (a) for the period after such date as may be certified by the Minister as being the earliest reasonably practicable for taking the necessary action in view of the said facts for stopping payments as on account of the allowance for the first-mentioned family ; and
- (b) for any period before that date in respect of which payment of sums as on account of the allowance for the first-mentioned family has not been made, or in respect of which payment has been so made but of sums which have been repaid or recovered under this section.

9. If any person—

- (a) with intent to obtain any sum as on account of an allowance, either as in that person's own right or as on behalf of another, furnishes any information which he or she knows to be false in a material particular, or recklessly furnishes any information which is false in a material particular, or withholds any material information ; or
- (b) obtains or receives any sum as on account of an allowance, either as in that person's own right or as on behalf of another, knowing that it was not properly payable, or not properly receivable by him or her ;

Penalty for obtaining or receiving payment wrongfully.

that person shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and such fine.

10.—(1) Every assignment of or charge on, and every agreement to assign or charge, an allowance or any part of an allowance or any sum to be paid on account of an allowance, shall be void, and on the bankruptcy of a person to whom an allowance belongs or by whom sums on account of an allowance are receivable, no rights in respect of the allowance or of any sum to be paid on account thereof shall pass to any trustee or other person acting on account of the creditors.

Allowances to be inalienable.

(2) Sums receivable by any person on account of an allowance shall not be included in calculating his means for the purposes of section five of the Debtors Act, 1869.

32 & 33 Vict.
c. 62.

Exclusion and adjustments in certain circumstances.

11.—(1) A child shall not, for the purposes of this Act, be treated as included in any family as respects any period—

Exclusion of children removed from control of parents.
23 & 24 Geo. 5.
c. 12.

- (a) during which his or her detention in an approved school is authorised by an order made or deemed to be made under any provision of the Children and Young Persons Act, 1933, or by virtue of section seventy-three or seventy-four of that Act, and the child is not absent from the school on licence ;

- (b) during which there is in force an order under subsection (2) of section sixty-nine of that Act committing the child to custody in any place to which he or she might be committed on remand ;
- (c) during which the child is liable to be detained by virtue of section fifty-three of that Act and is not discharged on licence.

(2) A child shall not, for the purposes of this Act, be treated as included in any family as respects any period during which there is in force an order under the Children and Young Persons Act, 1933, committing him or her to the care of a local authority.

- 20 & 21 Geo. 5.
c. 17. (3) A child in respect of whom there is in force a resolution under subsection (1) of section fifty-two of the Poor Law Act, 1930, of the council of a county or county borough, or of a joint committee established by an order under section three of that Act, shall not, for the purposes of this Act, be treated as included in any family:

Provided that this subsection shall not have effect as respects any period during which the child is permitted by virtue of the proviso to subsection (1) of the said section fifty-two or of an order under subsection (2) of that section of a court of summary jurisdiction to be, either permanently or temporarily, under the control of a person or body other than the council or joint committee.

Exclusion of
children for whom
orphans' pensions
are paid.
26 Geo. 5. &
1 Edw. 8. c. 33.

12. A child in respect of whom an orphan's pension is being paid under the Widows', Orphans' and Old Age Contributory Pensions Act, 1936, shall not be treated as included in any family.

Adjustment
in case of
children for
whom supple-
mentary allow-
ances, &c. are
paid under
certain
provisions.

3 & 4 Geo. 6.
c. 47.
6 & 7 Geo. 6.
c. 49.
25 & 26 Geo. 5.
c. 8.
7 & 8 Geo. 6.
c. 42.

13.—(1) Notwithstanding anything in—

- (a) the Workmen's Compensation (Supplementary Allowances) Act, 1940, or the Workmen's Compensation (Temporary Increases) Act, 1943 ;
- (b) subsection (1) of section thirty-seven of the Unemployment Insurance Act, 1935, or section three of the Unemployment Insurance (Increase of Benefit) Act, 1944 ; or
- (c) paragraph (a) of subsection (1) of section one of the Widows', Orphans' and Old Age Contributory Pensions Act, 1936 ;

a supplementary allowance, an increase in weekly rate of benefit, or an additional allowance, which would otherwise be payable in respect of a child under any of those enactments shall not be payable in respect of any week beginning after the coming into force of section one of this Act if at the beginning of that week an award of an allowance under this Act in respect of the child has been made :

Provided that that supplementary allowance, increase or additional allowance, shall become payable in respect of any such week as aforesaid if and when it has been found by revision of the award, or by an express decision under section five of this Act, that the allowance under this Act awarded in respect of the child did not accrue during any part of that week and, in the case of an award or of a decision of the Minister, the time for making an application to have the matter referred under that section has expired or the matter has been referred thereunder and the Minister's award or decision has been affirmed.

(2) Where a supplementary allowance, an increase in weekly rate of benefit, or an additional allowance, has been paid in respect of a child under any of the enactments aforesaid in respect of any period before the making of an award of an allowance under this Act in respect of the child, the Minister may in his discretion treat any sums which may subsequently become receivable on account of the allowance so far as accruing during that period as reduced for the purposes of this Act by an amount not exceeding such an amount as he is satisfied to have been paid as aforesaid by way of supplementary allowance, increase or additional allowance, under any of those enactments, and—

(a) where the payment was by way of such a supplementary allowance as aforesaid, the Minister may pay any amount by which the sums becoming so receivable are treated as reduced to the person by whom the supplementary allowance was paid ;

(b) where the payment was by way of such increase or additional allowance as aforesaid, the Minister may make, in respect of any amount by which the sums becoming so receivable are treated as reduced, such adjustment in account or payment into the Unemployment Fund, the Pensions Account, the Pensions (Scotland) Account, the Special Pensions Account, or the Special Pensions (Scotland) Account, as appears to him to be requisite.

(3) Subsection (1) of section three of the Workmen's Compensation (Supplementary Allowances) Act, 1940, shall have effect with the substitution for the words "Any employer against whom a claim for supplementary allowances is made may by notice in writing require the workman to make a declaration in such form as may be prescribed by the Minister of National Insurance and containing such information as may be necessary for the purposes of this Act as to any children in respect of whom allowances are claimed" of the words "It shall be the duty of an employer against whom a claim for supplementary allowances is made by notice in writing to require the workman to make a declaration in such form as may be prescribed by the Minister of National Insurance and containing such information as may be

so prescribed as to any children of his," and it shall be the duty of an employer to transmit to the Minister a copy of any declaration made to him by a workman under the said subsection (1).

(4) The committee of management of, or other the person administering, a scheme duly certified under subsection (1) of section thirty-one of the Workmen's Compensation Act, 1925, by the Registrar of Friendly Societies may submit to the Registrar proposals for amending the scheme with respect to the benefits thereunder in respect of children, and the Registrar, if satisfied that the effect of amending the scheme in accordance with the proposals will not be to render the benefits under the scheme (after discounting any additional benefits arising as a result of contributions by the workmen) less favourable to the workmen than the benefits provided by the Workmen's Compensation Acts, 1925 to 1943, may amend the scheme accordingly, and the certificate given by him in respect of the scheme shall continue to apply to the amended scheme.

Adjustment
in case of
children for
whom equiva-
lent benefits
are provided
under pro-
visions relating
to the services
and to war
injury.

14.—(1) The following provision shall have effect as respects allowances under this Act which apart from such provision would accrue during any period before such date as may be certified by the Treasury as the date on which a revision has taken effect of the scales of emoluments and other benefits to be paid in respect of the service of a member of the naval, military or air forces of the Crown (including such nursing or other auxiliary service as may be prescribed), that is to say, if the Minister is satisfied that provision has been made, by an authority by whom allowances or other additions to emoluments in respect of that period are payable in respect of any children by reference to such service as aforesaid, for the giving in respect of those children and of that period of benefits, in addition to those allowances or other additions to emoluments, equivalent to the benefits conferred by this Act in respect of those children and of that period, he may make regulations for withholding the allowances under this Act which would otherwise accrue in respect of those children during that period.

(2) The preceding subsection shall apply in relation to a revision of the scales of benefits to be paid—

(a) in respect of the disablement or death of persons who have served in any of the said forces, or

(b) under any scheme made by virtue of the Injuries in War (Compensation) Act, 1914, the Injuries in War Compensation Act, 1914 (Session 2), the Injuries in War (Compensation) Act, 1915, the Government War Obligations Acts, 1914 to 1916, the Personal Injuries (Emergency Provisions) Act, 1939, or the Pensions (Navy, Army, Air Force and Mercantile Marine) Act, 1939, either as originally enacted or as amended by the Pensions (Mercantile Marine) Act, 1942,

4 & 5 Geo. 5.
c. 30.

5 & 6 Geo. 5.
c. 18.

5 & 6 Geo. 5.
c. 24.

2 & 3 Geo. 6.
c. 82.

2 & 3 Geo. 6.
c. 83.

5 & 6 Geo. 6.
c. 26.

with the substitution, for references to allowances or other additions to emoluments payable by reference to such service as is mentioned in the preceding subsection, of references to allowances or other additions payable by reference to such disablement or death as aforesaid, or under any such scheme as aforesaid, as the case may be.

(3) Regulations made for the purposes of this section shall be of no effect until approved by a resolution of each House of Parliament.

15.—(1) Where—

- (a) outdoor relief, or an allowance under the Unemployment Assistance Acts, 1934 to 1940 (in this section referred to as an "unemployment allowance"), or a supplementary pension under Part II of the Old Age and Widows' Pensions Act, 1940, is granted to or on account of any person in respect of any period, and
- (b) that person subsequently becomes entitled to receive in respect of the same period sums on account of an allowance under this Act,

Adjustments
in respect of
outdoor relief
etc.

3 & 4 Geo. 6.
c. 13.

the Minister may in his discretion treat the said sums as reduced for the purposes of this Act by an amount not exceeding the amount of any reduction which the authority granting the relief, or the Assistance Board, as the case may be, certify that they would have made in the relief, unemployment allowance or pension, as the case may be, if those sums had been receivable by that person during that period.

(2) Where under this section the Minister treats sums on account of an allowance as reduced in respect of outdoor relief, he may pay to the authority granting the relief an amount equal to that by which those sums are treated as reduced.

Administrative provisions.

16.—(1) Regulations made by the Registrar General under the Births and Deaths Registration Acts, 1836 to 1929, may provide for the furnishing by superintendent registrars and registrars, subject to the payment of such fee as may be prescribed by the regulations, of such information for the purposes of this Act, including copies or extracts from the registers in their custody, as may be so prescribed.

Obtaining of
information as
to births,
marriages and
deaths.

(2) Where the age, marriage or death of a person is required to be ascertained or proved for the purposes of this Act, any person shall, on presenting to the custodian of the register under the enactments relating to the registration of births, marriages and deaths wherein particulars of the birth, marriage or death, as the case may be, of the first-mentioned person are entered, a

duly completed requisition in writing in that behalf, and on payment of a fee of—

(a) sixpence, in the case of a requisition relating to particulars of a birth, and

(b) one shilling, in the case of a requisition relating to particulars of a marriage or death,

be entitled to obtain a copy, certified under the hand of the custodian, of the entry of those particulars.

(3) Requisitions for the purposes of the last preceding subsection shall be in such form and contain such particulars as may from time to time be specified by the Registrar General, and suitable forms thereof shall, on request, be supplied without charge by every superintendent registrar and registrar.

(4) In this section the expression "Registrar General" means the Registrar General of births, deaths and marriages and the expressions "superintendent registrar" and "registrar" mean, respectively, a superintendent registrar and registrar for the purposes of the enactments relating to the registration of births, deaths and marriages.

Regulations of
the Minister.

17.—(1) The Minister, in conjunction with the Treasury so far as relates to matters with respect to which the Treasury so direct, and in conjunction with the Postmaster General so far as relates to the Post Office, may make regulations for prescribing anything which under this Act is to be prescribed and generally for carrying this Act into effect, and in particular, but without prejudice to the generality of this subsection,—

(a) for prescribing the manner in which claims to allowances may be made ;

(b) for specifying the circumstances in which a person is to be treated for the purposes of this Act as undergoing full-time instruction in a school or full-time training ;

(c) for authorising in such cases as may be prescribed the payment of any sum as on account of an allowance during any period intervening between the making of any claim or the referring of any question and the final determination of the claim or question ;

(d) for enabling a person to be appointed to exercise, on behalf of a claimant, or of a person to or by whom an allowance belongs or is receivable, who may be or become unable for the time being to act, any right or power which that claimant or person may be entitled to exercise under this Act, and for authorising a person so appointed to receive any sum on account of an allowance on behalf of that claimant or person ;

(e) for imposing upon persons to whom allowances belong or by whom or on whose behalf sums on account of allowances

are receivable the duty to furnish to the Minister information of facts affecting the right thereto ;

- (f) for making provision, in connection with the death of persons who had made claims for allowances or to whom allowances belonged or by whom sums on account of allowances were receivable, for enabling such claims to be proceeded with, for extending the period limited by section seven of this Act for obtaining payment of such sums, for authorising payment or distribution of such sums to or amongst persons claiming as personal representatives, legatees, next of kin or creditors of such persons (or, in cases of illegitimacy of deceased persons, to or amongst others), and for dispensing with strict proof of the title of persons so claiming.

(2) Any regulations made under this Act by the Minister, other than regulations made for the purposes of section fourteen of this Act, shall be laid before Parliament as soon as may be after they are made and if either House of Parliament, within the period of forty days beginning with the date on which any such regulations are laid before it, resolves that the regulations shall be annulled, the regulations shall thereupon cease to have effect, but without prejudice to anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(3) Section one of the Rules Publication Act, 1893, shall not apply to any regulations made by the Minister under this Act. 56 & 57 Vict.
c. 66.

(4) If any person contravenes or fails to comply with any requirement of regulations made under this Act, he shall be liable on summary conviction to a fine not exceeding ten pounds.

18.—(1) Proceedings for an offence under this Act shall not be instituted in England except by or with the consent of the Minister or by an officer authorised in that behalf by special or general directions of the Minister. Provisions
as to legal
proceedings.

(2) Proceedings for the summary recovery as a civil debt of a sum due to the Minister under this Act may be instituted by an officer authorised in that behalf by special or general directions of the Minister.

(3) An officer authorised in that behalf by special or general directions of the Minister may, although not of counsel or a solicitor, prosecute or conduct any such proceedings as aforesaid before a court of summary jurisdiction.

(4) Proceedings for an offence under this Act may be commenced at any time within the period of three months from the date on

which evidence, sufficient in the opinion of the Minister to justify a prosecution for the offence, comes to his knowledge, or within the period of twelve months from the date on which the offence was committed, whichever period last expires, and for the purposes of this subsection a certificate purporting to be signed by or on behalf of the Minister as to the date on which such evidence as aforesaid came to his knowledge, shall be conclusive evidence thereof.

Exemption
from stamp
duty.

19. Stamp duty shall not be chargeable upon a draft or order for the payment of a sum on account of an allowance, or upon a receipt given for, or on the payment of, any such sum.

Administrative
expenses.

20. Any expenses incurred in the administration of this Act, to such extent as may be sanctioned by the Treasury, shall be paid out of moneys provided by Parliament.

Interpretation.

Provisions
as to certain
special
circumstances
affecting the
operation
of s. 3.

21.—(1) A man and his wife shall not be deemed for the purposes of this Act to be living otherwise than together unless they are permanently living in separation either by agreement or under an order of a court, or one of them has deserted the other and the separation which is incident to the desertion has not come to an end.

(2) For the purposes of this Act, a child being legitimate issue of a deceased spouse of any person by an earlier marriage of the deceased spouse to another shall be treated as issue of that person, and a child being illegitimate issue of a deceased spouse of any person shall be treated as issue of that person so far as regards any period during which the child is living with that person :

Provided that the preceding provisions of this subsection shall not have effect in a case in which the marriage between the person in question and his or her deceased spouse was terminated otherwise than by the deceased spouse's death.

(3) Where a child born before the marriage of the child's parents has been legitimated by virtue of the subsequent marriage of the parents, the child shall, for the purposes of this Act, be deemed to be issue of the marriage.

(4) For the purposes of this Act, an adopted child within the meaning of the Adoption of Children Act, 1926, or the Adoption of Children (Scotland) Act, 1930, shall be treated as if the child were legitimate issue of the adopter, or, if the child was adopted by two spouses jointly, or by one of two spouses after their marriage, as if the child were legitimate issue of their marriage, and shall not be treated as being issue of any other person.

(5) An illegitimate child shall not be treated for the purposes of this Act as being issue of the child's father.

16 & 17 Geo. 5.
c. 29.
20 & 21 Geo. 5.
c. 37.

(6) References in this Act to the parents, a parent, the father, or the mother of a child, or to an illegitimate child, shall be construed in accordance with the provisions of the four last preceding subsections.

(7) A child shall not be deemed for the purposes of this Act to have ceased to live with a person by reason of any temporary absence, and in particular by reason of absence at any school, and a person who has been contributing at any rate to the cost of providing for a child, or has been maintaining a child, shall not be treated as having ceased so to contribute, or to maintain the child, by reason of any temporary interruption or reduction of his contribution to the cost of providing for the child, and the question whether any such absence (other than at a school), interruption or reduction is or is not to be treated as temporary for the said purposes shall be determined by reference to such rules as may be prescribed.

(8) For the purposes of this Act, a person shall be deemed according to the law in England and Wales, as well as according to the law in Scotland, not to have attained the age of sixteen until the commencement of the sixteenth anniversary of the day of his birth, and similarly with respect to other ages.

22.—(1) In this Act the expression "providing for" a child means making available for the child food, clothing, lodging, education and all other things reasonably required for the child's benefit having regard to all the circumstances. Meaning of "providing for" a child.

(2) For the purposes of this Act—

- (a) the making available in kind of anything used for providing for a child shall be treated as a contribution to the cost of providing for the child of an amount equal to the value thereof;
- (b) money paid or a thing made available in kind shall be treated as contributed by any person so far, and so far only, as it is paid or made available at that person's own expense or out of property belonging to that person beneficially.

23. In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

"allowance" means an allowance under this Act;

"apprentice" means a person undergoing full-time training for any trade, business, profession, office, employment or vocation, and not in receipt of earnings which provide him, wholly or substantially, with a livelihood;

"the Minister" means the Minister of National Insurance.

Extent, commencement, and short title.

Limitation
of extent of
application
of Act.

24.—(1) It shall be a condition of the right to any allowance for the family of a man and his wife living together that either—

- (a) the man is a British subject whose place of birth is in the United Kingdom, or, if not,
- (b) such requirements as to nationality, residence, place of birth or other matters as may be prescribed are satisfied as respects the man, or his wife, or either or both of them, according as may be provided by regulations ;

and the like condition shall apply in the case of the family of such a man as is mentioned in paragraph (b) of subsection (1) of section three of this Act subject to the limitation that requirements may be prescribed as respects the man only, and in the case of the family of such a woman as is mentioned in paragraph (c) of that subsection with the substitution for the reference to the man in paragraph (a) of this subsection of a reference to the woman and subject to the limitation that requirements may be prescribed as respects the woman only.

(2) It shall be a condition of the right to any allowance for the family of a man and his wife living together that each or one of them is in Great Britain, and the like condition shall apply in the case of the family of such a man as is mentioned in paragraph (b) of subsection (1) of section three of this Act as respects the man, and in the case of the family of such a woman as is mentioned in paragraph (c) of that subsection as respects the woman.

(3) It shall be a condition of a child's being treated as a member of any family that the child is in Great Britain.

(4) For the purposes of the two last preceding subsections the temporary presence of a person in Great Britain or the temporary absence of a person therefrom shall be disregarded, and the question whether the presence or absence of a person is or is not to be treated as temporary for the said purposes shall be determined by reference to such rules as may be prescribed.

(5) Sums to be paid on account of allowances shall be payable only in Great Britain.

Provisions as
to reciprocal
arrangements
with other
parts of His
Majesty's
dominions.

25.—(1) Where any scheme of family allowances appearing to the Minister to be one substantially corresponding to the scheme established by this Act is in force by virtue of legislative enactment in any other country being a part of His Majesty's dominions outside Great Britain, the Minister may, with the consent of the Treasury, make reciprocal arrangements with the authority administering the scheme of that other country as respects the conditions mentioned in the last preceding section on the one hand and any conditions limiting the extent of the scheme of that other country on the other hand.

(2) Any such arrangements may include provision for the modification or adaptation of the respective schemes in relation to or in connection with persons affected by the arrangements, and regulations made under this Act may provide for such modification or adaptation of the provisions of this Act as may appear to the Minister to be requisite for giving effect to the arrangements or in consequence thereof, and for any necessary financial adjustments.

(3) For the purposes of this section, the expression "His Majesty's dominions" includes British Protectorates and Protected States and any territory in respect of which a mandate has been accepted by His Majesty and is being exercised by the Government of any part of His Majesty's dominions.

26.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland. Application to Scotland.

(2) For any reference to a county borough there shall be substituted a reference to a large burgh within the meaning of the Local Government (Scotland) Act, 1929, and any other burgh shall be deemed to be included within the county in which it is situated; for any reference to a court of summary jurisdiction there shall be substituted a reference to the sheriff; and for any reference to the bankruptcy of a person there shall be substituted a reference to the sequestration of the estate of a person. 19 & 20 Geo. 5. c. 25.

(3) For references to the Children and Young Persons Act, 1933, and to sections fifty-three, sixty-nine, seventy-three and seventy-four thereof, there shall be substituted respectively references to the Children and Young Persons (Scotland) Act, 1937, and to sections fifty-seven, seventy-three, seventy-seven and seventy-eight thereof; for any reference to section five of the Debtors Act, 1869, there shall be substituted a reference to section four of the Civil Imprisonment (Scotland) Act 1882; for references to the Births and Deaths Registration Acts, 1836 to 1929, and to regulations made by the Registrar General thereunder there shall be substituted respectively references to the Registration of Births Deaths and Marriages (Scotland) Acts, 1854 to 1938, and to regulations made under section six of the Registration of Births, Deaths and Marriages (Scotland) Act, 1854; for any reference to the Registrar General there shall be substituted a reference to the Registrar General of Births Deaths and Marriages in Scotland, and references to a superintendent registrar shall be omitted. 1 Edw. 8 & 1 Geo. 6. c. 37.
45 & 46 Vict. c. 42.
17 & 18 Vict. c. 80.

(4) Subsection (2) of section two shall have effect as if for paragraph (a) the following paragraph were substituted—

"(a) the upper limit of the compulsory school age means in relation to any person the age at which under the law for the time being in force his parents cease to be under obligation to cause him to receive efficient education."

(5) Subsection (3) of section four shall have effect as if the words "by way of complaint" were omitted.

(6) Subsection (2) of section five shall have effect as if for paragraph (b) of the proviso the following paragraph were substituted—

"(b) on the application of any party to a reference under this section at any stage of the proceedings, the referee or referees may, and shall, if so directed by the Court of Session, state a case on any question of law arising in the reference for the opinion of the Court of Session."

(7) Subsection (5) of section five shall have effect as if the reference to the Arbitration Acts, 1889 to 1934, were omitted.

(8) Subsection (5) of section eight shall have effect as if the word "summarily" were omitted, and nothing in that subsection shall be construed as limiting the period within which proceedings for the recovery of any sum may be brought.

(9) Section eleven shall have effect as if for the reference in subsection (2) to a local authority there were substituted a reference to an education authority and as if for subsection (3) there were substituted the following subsection—

"(3) A child shall not, for the purposes of this Act, be treated as included in any family as respects any period during which he or she is maintained in any poor-house or is lodged, boarded or maintained otherwise than in a poor-house by a local authority under the enactments relating to the relief of the poor."

(10) Subsection (2) of section eighteen shall have effect as if the word "summary" were omitted, and subsection (4) of the said section shall have effect as if for the reference to evidence sufficient to justify a prosecution there were substituted a reference to evidence sufficient to justify a report to the Lord Advocate with a view to consideration of the question of prosecution.

Provision as
to Northern
Ireland.

10 & 11 Geo. 5.
c. 67.

27. Notwithstanding anything in the Government of Ireland Act, 1920, the Parliament of Northern Ireland shall have power, in connection with any scheme of family allowances established by any enactment of that Parliament, to make laws for purposes similar to the purposes of sections twenty-four and twenty-five of this Act.

Commence-
ment.

28.—(1) This Act shall come into force on such date as the Minister may by order appoint, and different days may be appointed for different purposes and for different provisions of this Act.

(2) Provision may be made by regulations made by the Minister for enabling claims to allowances to be made and to be disposed of, and for enabling an allowance to be awarded, before the coming

into force of section one of this Act, but, notwithstanding anything in this subsection or in subsection (2) of section six of this Act, no allowance shall begin to accrue before the coming into force of section one of this Act.

29. This Act may be cited as the Family Allowances Act, Short title. 1945.

SCHEDULE.

Section 3.

*Circumstances in which a person is to be treated
as maintaining a child.*

1.—(1) A person shall be treated for the purposes of this Act as maintaining a child—

- (a) if that person is the only person who contributes to the cost of providing for the child, or if that person contributes to the said cost an amount greater than any other one person contributes thereto ;
- (b) if two or more persons of whom that person is one each of them contribute to the said cost an equal amount that is greater than any other one person contributes thereto, and it is agreed between the said two or more persons, or in default of agreement the Minister in his discretion decides, that, as between them, that person is to be preferred ;

and not otherwise :

Provided that a person who under the preceding provisions would be treated as maintaining a child shall not be so treated if his or her contribution to the cost of providing for the child is at a rate less than five shillings a week, unless the child is living with that person.

(2) For the purposes of this paragraph, a man and his wife living together shall be treated as one person and amounts contributed by them respectively shall be aggregated accordingly, and references to a person shall be construed as references to such persons as are mentioned in paragraphs (a), (b) and (c) respectively of subsection (1) of section three of this Act, that is to say, a man and his wife living together, such a man as is mentioned in the said paragraph (b) and such a woman as is mentioned in the said paragraph (c).

*Determination of the family in which a child capable of being treated as
included in more than one family is to be included.*

2. Where a child could otherwise be treated under section three of this Act as included at the same time in one family as being issue of his or her parents or either of them, and in another family as being maintained by a person other than his or her parents or either of them, the child shall be treated as then included in that family only in which he or she can be treated as included as being issue of the parents or parent.

3. Where a child could otherwise be treated under section three of this Act as included at the same time in one family on the ground of the child's being issue of his or her father, and in another family on the ground of the child's being issue of his or her mother, the child shall be treated as then included in one of those families to the exclusion of the other as may be agreed between the father and the mother, or in default of agreement as the Minister may in his discretion decide.

CHAPTER 42.

Water Act, 1945.

ARRANGEMENT OF SECTIONS.

PART I.

CENTRAL AND LOCAL PLANNING.

Section.

1. Duty of Minister in relation to water.
2. Central Advisory Water Committee.
3. Joint Advisory Water Committees.
4. Duties of Joint Advisory Water Committees.
5. Power to require local authorities and statutory water undertakers to carry out surveys and formulate proposals.
6. Power of Minister to require records and information from persons abstracting water.
7. Facilities for obtaining information as to underground water.

PART II.

LOCAL ORGANISATION OF WATER SUPPLIES.

8. Joint water boards.
9. Combination of undertakers and transfer of undertakings by agreement or compulsorily.
10. Variation of limits of supply by agreement or compulsorily.
11. Power of Minister to authorise certain statutory water undertakers to supply premises outside their limits of supply.
12. Supply of water in bulk by agreement or compulsorily.
13. Default powers of Minister.

PART III.

CONSERVATION AND PROTECTION OF WATER RESOURCES.

14. Control of abstraction and prevention of waste in certain areas.
15. Agreements as to drainage, etc., of land.
16. Power to prohibit or restrict temporarily use of hosepipes.
17. Byelaws for preventing waste, misuse or contamination of water.
18. Byelaws for preventing pollution of water of undertakers.
19. General provisions as to byelaws.
20. Power of Minister to require the making of byelaws, to make byelaws in case of default and to revoke byelaws.
21. Penalty for polluting water used for human consumption.
22. Acquisition of land and execution of works for protection of water.